

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ROBERT JONES,

SUMMONS

Index No.:

Plaintiff,

-against-

The Basis of Venue is:
Location of Incident

AMABLE LOPEZ; JESSETTE ADORNO; TOMOR
BERISHA; ANTHONY DONATO; JALEEL GATLING;
RALPH GURR; MANUEL MEDEIROS; JOSE VELEZ;
JOHN AND JANE DOE ONE THROUGH SIX

Plaintiff designates BRONX
County as the place of trial.

Defendants.

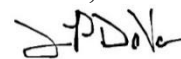
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 14, 2022

Yours, etc.



DEVERNA LAW
John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

Defendants' Addresses:

AMABLE LOPEZ; 43 PCT 900 Fteley Ave, The Bronx, NY 10473

JESSETTE ADORNO; 43 PCT 900 Fteley Ave, The Bronx, NY 10473

TOMOR BERISHA; 43 PCT 900 Fteley Ave, The Bronx, NY 10473

ANTHONY DONATO; NBBX; 1 Police Plaza, New York, NY 10038

JALEEL GATLING; 43 PCT 900 Fteley Ave, The Bronx, NY 10473

RALPH GURR; 43 PCT 900 Fteley Ave, The Bronx, NY 10473

MANUEL MEDEIROS (Shield Number 719); 43 PCT 900 Fteley Ave, The Bronx, NY 10473

JOSE VELEZ (Shield Number 4949); Warrant Section; 1 Police Plaza, New York, NY 10038

POLICE OFFICERS JOHN AND JANE DOE ONE THROUGH SIX; 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ROBERT JONES

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

AMABLE LOPEZ; JESSETTE ADORNO; TOMOR
BERISHA; ANTHONY DONATO; JALEEL GATLING;
RALPH GURR; MANUEL MEDEIROS; JOSE VELEZ;
JOHN AND JANE DOE ONE THROUGH SIX

JURY TRIAL DEMANDED

Defendants.

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Plaintiff ROBERT JONES (AKA ROBERT JHON), by their attorneys, DEVERNA LAW,
as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of a November 16, 2019, incident, in which defendants acting under color of state law unlawfully arrested, detained Plaintiff, and used excessive force upon Plaintiff. Plaintiff was maliciously prosecuted until the matter ended in Plaintiff's favor.
3. As a result, Plaintiff suffered serious physical and emotional injuries.

4. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.
5. This action and all associated claims have been timely brought within the applicable statutes of limitations.¹
6. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
7. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

8. Plaintiff ROBERT JONES (AKA ROBERT JHON) is a resident of the state of New York.
9. Defendant AMABLE LOPEZ was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant AMABLE LOPEZ was, at the time relevant herein, a police officer in the 43rd Precinct. Defendant AMABLE LOPEZ is sued in their individual and official capacities.
10. Defendant JESSETTE ADORNO was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant JESSETTE ADORNO was, at the time relevant herein,

¹ On March 20, 2020, Governor Cuomo signed the first of a series of executive orders tolling filing deadlines, "including those relating to the notice of claim process." Governor Cuomo periodically extended the tolling period including, most recently, until November 5, 2020.

a police officer in the 43rd Precinct. Defendant JESSETTE ADORNO is sued in their individual and official capacities.

11. Defendant TOMOR BERISHA was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant TOMOR BERISHA was, at the time relevant herein, a police officer in the 43rd Precinct. Defendant TOMOR BERISHA is sued in their individual and official capacities.
12. Defendant ANTHONY DONATO was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant ANTHONY DONATO was, at the time relevant herein, a police officer in the NBBX. Defendant ANTHONY DONATO is sued in their individual and official capacities.
13. Defendant JALEEL GATLING was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant JALEEL GATLING was, at the time relevant herein, a police officer in the 43rd Precinct. Defendant JALEEL GATLING is sued in their individual and official capacities.
14. Defendant RALPH GURR was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant RALPH GURR was, at the time relevant herein, a police officer in the 43rd Precinct. Defendant RALPH GURR is sued in their individual and official capacities.

15. Defendant MANUEL MEDEIROS was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant MANUEL MEDEIROS was, at the time relevant herein, a police officer in the 43rd Precinct. Defendant MANUEL MEDEIROS is sued in their individual and official capacities.
16. Defendant JOSE VELEZ was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant JOSE VELEZ was, at the time relevant herein, a police officer in the Warrant Section. Defendant JOSE VELEZ is sued in their individual and official capacities.
17. At all times relevant Defendants John and Jane Doe One Through Six were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe One Through Six, but such information is believed to be in the possession of the defendants.
18. At all times relevant herein, Defendants John and Jane Doe One Through Six, were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe One Through Six, are sued in their individual and official capacities.
19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all

times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

FACTUAL CHARGES

20. On November 16, 2019, at approximately 10:10PM, Plaintiff was lawfully at or near 2010 Bruckner Boulevard, Bronx, New York.
21. At about that date and time, Plaintiff was lawfully present in the area and not obstructing pedestrian or vehicle traffic or otherwise committing any offense or violation of the law, had his rights violated.
22. While Plaintiff was present in the area, Defendant Officers demanded that Plaintiff and others move down the block away from the area.
23. Plaintiff obeyed Defendant Officers' orders.
24. As Plaintiff was leaving the area, Defendant Officers, while acting in concert, approached Plaintiff, grabbed and forcefully pushed Plaintiff to the car repeatedly.
25. Defendants then threw Plaintiff to the ground and forcefully thrust knees, fists and elbows in Plaintiff's back and body.
26. Defendants conduct also prevented Plaintiff from breathing.
27. Plaintiff did not resist arrest in any way.
28. Defendant Officer then placed unreasonably tight handcuffs on Plaintiff and proceeded to lift Plaintiff off the ground by the chain of the handcuffs, causing severe injuries to Plaintiff's shoulders, arms, and wrists.

29. Though Plaintiff was not committing any criminal offense or violating the law, he was unlawfully seized and falsely arrested by Defendant Officers (B19646149).²
30. Plaintiff was not told what he was being arrested for.
31. Defendants officers did not have probable cause or reasonable suspicion to detain or arrest Plaintiff.
32. The Defendant officers did not observe Plaintiff committing any crime or violating any law or local ordinance.
33. Plaintiff did not resist arrest.
34. Plaintiff was falsely charged with Resisting Arrest, Obstructing Governmental Administration, and Disorderly Conduct, crimes which the Defendants knew or should have known Plaintiff was not involved in the alleged commission of.
35. Based on information and belief, a Defendant supervisor, was present on the scene and did not stop the unlawful arrest of Plaintiff.
36. Some of the Defendant officers who did not participate in the incident but were otherwise present and observed the violation of Plaintiff's constitutional rights failed to intercede on Plaintiff's behalf.
37. After Plaintiff's arrest, Plaintiff was subjected to a search of the intimate parts of his body causing him embarrassment and humiliation.
38. Plaintiff was unlawfully detained for approximately twenty-four (24) hours.
39. The force used by Defendants caused Plaintiff personal, physical, and emotional injuries, the extent of which are still unknown.

² Plaintiff was processed and prosecuted under an alternative spelling of his name, ROBERT JHON.

40. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiff and violate their civil rights.
41. Defendants prepared false sworn affidavits and false police reports relating to Plaintiff's arrest.
42. Defendants repeatedly falsified information relating to the facts and circumstances surrounding Plaintiff's arrest.
43. At all times relevant hereto, Defendants were involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of their fellow officers when they observed Plaintiff's arrest without probable cause.
44. At all times relevant hereto, Defendants were involved in the decision to violate Plaintiff's civil rights, including falsely arresting Plaintiff, and failed to intervene in the actions of their fellow officers.
45. Plaintiff's injury was a foreseeable result of Defendant officers unlawful conduct and was the proximate cause of their injuries.

CAUSE OF ACTION

Unlawful Stop and Search

Under 42 U.S.C. § 1983 Against Individual Defendants

43. The above paragraphs are here incorporated by reference as though fully set forth.
44. Defendants entered Plaintiff's property apartment forcefully, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.
45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped and searched, and subjected to denial of their due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable stop and seizure

and denial of due process under the Fourth and Fifth and Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
47. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
48. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
49. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

False Arrest and False Imprisonment
Under 42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.
51. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
52. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
53. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
54. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

55. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
56. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
57. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Failure to Intervene

Under 42 U.S.C. § 1983 Against Individual Defendants

58. The above paragraphs are here incorporated by reference as though fully set forth.
59. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
60. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Malicious Abuse of Process

Under 42 U.S.C. § 1983 Against Individual Defendants

62. The above paragraphs are here incorporated by reference as though fully set forth.
63. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

- 64. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
- 65. Defendant intended to inflict substantial harm upon Plaintiff.
- 66. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
- 67. Defendant's actions deprived plaintiff of their constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
- 68. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Malicious Prosecution

Under 42 U.S.C. §1983 Against Individual Defendants

- 69. The above paragraphs are here incorporated by reference as though fully set forth.
- 70. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of their constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
- 71. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused them to be prosecuted.
- 72. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
- 73. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondent superior.

74. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
75. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983

76. The above paragraphs are here incorporated by reference as though fully set forth.
77. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
78. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

JURY DEMAND

79. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally:

- a) For each and every of the previously stated Cause(s) of Action, a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter; and
- b) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- c) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
December 14, 2022



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county where I maintain my office.

DATED: New York, New York
December 14, 2022



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
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New York, New York 10038
T- (212) 321-0025
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Index No. :

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

ROBERT JONES

Plaintiff,

-against-

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BERISHA; ANTHONY DONATO; JALEEL
GATLING; RALPH GURR; MANUEL MEDEIROS;
JOSE VELEZ; JOHN AND JANE DOE ONE
THROUGH SIX,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s)for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for